

ORDER SHEET
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH, BAHAWALPUR
JUDICIAL DEPARTMENT

W.P.No.8626-2018/BWP

Abdul Malik.

Vs.

Government of Punjab, etc

Sr. No. of order/ proceedings	Date of order/ proceedings	Order with Signature of Judge, and that of parties of counsel, where necessary.
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**08.10.2018. Malik Javed Aslam Naich, Advocate for
petitioner.
Mr. Saeed Ahmad Ch., A.A.G.**

Through this writ petition, following
prayer has been made:-

“In view of above, it is most respectfully submitted that by accepting this writ petition, the impugned order dated 28.09.2018 passed by respondent No.3 may kindly be set aside and declared as having been passed illegally, without lawful authority and of no legal effect and in-operative upon the rights of petitioner to secure the ends of justice.”

2. Learned counsel for the petitioner argues that the petitioner was appointed as PST; that vide impugned order dated 28.09.2018 passed by respondent No.3, the petitioner was suspended and his services were placed at the disposal of respondent No.3, which is at a long distance from the residence of the petitioner. Prays for acceptance of this writ petition and suspension of the impugned order.

3. Learned A.A.G states jurisdiction of this Court is barred under Article 212 of the Constitution.

4. Heard. Record perused.

5. The petitioner being PST Teacher and an employee of Education Department is a civil servant. The suspension order assailed through the instant writ petition necessarily falls within the terms and conditions of civil servants. Mere suspension is not a punishment and suspension of a government servant during the course of his service simply means that no work is to be taken from him during the period of his suspension. Suspension is only a temporary measure, wherein the petitioner is entitled to receive his full emoluments in view of the judgment of the Hon'ble Supreme Court of Pakistan in case titled ***Government of N.W.F.P v. I.A Sherwani*** (PLD 1994 SC 72). The Service Tribunal had jurisdiction to decide such like matters in due course of law and writ petition is not maintainable. Reliance is placed on ***ABDUL HAMEED versus PROVINCE OF K.P.K. through Chief Secretary, Peshawar and 3 others*** (2016 PLC (C.S) 424) and ***Khawaja WAJID ALI versus DISTRICT COORDINATION OFFICER and another*** (2017 PLC (CS) 749 (Lahore)). In view of the bar contained under Article 212 of the Constitution of Islamic Republic of Pakistan, 1973, this Court is not vested with jurisdiction to interfere in the impugned order

dated 28.09.2018 passed by respondent No.3. Reliance can be placed upon the judgments of august Supreme Court of Pakistan reported as **Ali Azhar Khan Baloch and others Vs. Province of Sindh and others**) (2015 SCMR 456) and **Sh. Riaz-ul-Haq and another Vs. Federation of Pakistan through Ministry of Law and others**) (PLD 2013 Supreme Court 501).

6. Even otherwise the petitioner has been suspended under the PEEDA Act, 2006, which provides for its own mechanism and suspension order is a preliminary stage in the disciplinary proceedings initiated against a civil servant which may culminate into a final order providing cause of action to the petitioner to seek remedy under the said law, therefore, this constitutional petition challenging such order would be premature at this stage. The petitioner has an alternate efficacious remedy by approaching the departmental appellate authority and then the respective Service Tribunal for redressal of his grievance. Reliance in this regard is placed on **Indus Trading and Contracting Company v. Collector of Customs (Preventive) Karachi and other** (2016 SCMR 842) and **Dr. Sher Afgan Khan Niazi v. Ali S.Habib and others** (2011 SCMR 1813).

7. Discretion of a competent authority to place an officer/official under suspension fell within the domain of competent authority under the relevance service law. In case the competent authority considered and or anticipated that during enquiry, the officer may temper with the evidence or influence the witnesses or act in a manner to prejudice the outcome of the enquiry, the competent authority may suspend such officer. The Hon'ble Supreme Court observed that the High Court in collateral proceedings could not step in the shoes of the competent authority by ordering suspension of civil servant while directing initiating of departmental proceedings. Reliance in this regard is placed on **IMAD ALI KHAWAJA Versus The STATE and others** (2016 SCMR 2057).

8. For what has been discussed above, in view of the bar contained in Article 212 of the constitution of Islamic Republic of Pakistan, 1973, and availability of alternate remedy to the petitioner, this constitutional petition is not maintainable and, therefore, stands dismissed **in limine.**

(MUZAMIL AKHTAR SHABIR)
Judge